

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

22. KAYLA TRUJILLO V. GUNNER SEXTON

25FL0153

Petitioner filed a Request for Order (RFO) on June 16, 2026, seeking conduct orders for co-parenting. Respondent was served with some, but not all the required documents on June 18, 2026. Petitioner requests the court make orders regarding communication between the parties as well as orders regarding reimbursements and parameters for the right of first refusal.

Respondent filed a Responsive Declaration on August 20, 2026. It was served on August 23, 2026. Respondent does not raise the defect in service, therefore, the court deems it to be waived. Respondent does not believe the conduct orders are necessary.

Petitioner filed a Reply Declaration on August 27, 2026. It was served on August 28, 2026. Petitioner reiterates the request for conduct orders.

The court has read and considered the filings as outlined above. The court finds that most, if not all, of the requested orders are already standing orders of the court. The court admonishes both parties to reflect on their behaviors. The court notes the Respect Guidelines that the court adopted as its orders on August 21, 2025. The court reiterates those orders.

Respect Guidelines:

1. Both parents shall exert every effort to maintain free access and unhampered contact between the children and the other parent and shall foster a feeling of affection between them and the other parent. Neither parent shall do anything to estrange children from the other parent, nor impair the natural development of their love and respect for the other parent.
2. Each parent shall respect the other's right to privacy during his or her parenting time with the children.
3. Neither parent shall make disparaging remarks about the other in the children's presence or within earshot.
4. Neither parent shall make disparaging remarks about extended family, relatives, friends, or significant others in children's presence or within earshot.

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5. Parents shall ensure that extended family, relatives, friends, or significant others do not make disparaging remarks about the parents in the children's presence or within earshot.
6. Neither parent shall harass, stalk, or threaten the other, extended family, relatives, friends, or significant others on social media. Parents shall ensure that extended family, relatives, friends, or significant others do not harass, stalk, or threaten the parents on social media.
7. Neither parent shall discuss custody issues with the children.
8. Parents shall ensure that third parties do not discuss custody issues with the children.
9. Neither parent shall ask the children to carry messages between them.
10. Parents shall discuss entertainment activities that interfere with the other parents' parenting time before discussing the activity with the children.
11. Neither parent shall direct threats, insults, or foul language towards the children.
12. Neither parent shall do anything that causes the children to feel guilt when:
 - a. Thinking about the other parent;
 - b. Communicating with the other parent via phone, text, email, or in person;
 - c. Discussing appreciation or concern for the other parent;
 - d. Writing cards or letters to the other parent;
 - e. Making gifts for the other parent;
 - f. Wanting to keep a picture of either parent or a gift made/given to them by either parent in their bedroom;
 - g. Or any other sign or symbolic gesture that endears the children to either parent.

Likewise, the orders for the right of first refusal were adopted on August 21, 2025, imposing a 10-hour requirement of parental unavailability which excludes employment.

The court reiterates the joint legal custody parameters.

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Joint Legal Custody:

1. Mother and Father will have joint legal custody of the children.
2. In exercising joint legal custody, Mother and Father will share in the responsibility and discuss in good faith matters concerning the health, education, and welfare of the children. The parents must discuss and consent in making decisions on the following matters:
 - a. Enrollment or disenrollment in a private or public school or daycare center.
 - b. Beginning or ending of psychiatric, psychological, or other mental health counseling or therapy.
 - c. Participation in extracurricular activities.
 - d. Selection of a doctor, dentist, or other health professionals (except in emergency situations).
 - e. Participation in religious activities or institutions.
 - f. Out-of-country or out-of-state travel
3. If a parent does not obtain the consent of the other parent to the items identified in #2, then:
 - a. He or she may be subject to civil or criminal penalties.
 - b. The court may change the legal and physical custody of the minor children.
4. Special decision making designation and access to children's records:
 - a. Both the custodial and noncustodial parent have the right to access records and information about their minor children (including medical, dental, and school records) and consult with professionals who are providing services to the children.
5. Health-care notification:
 - a. Each parent must notify the other of the name and address of each health practitioner who examines or treats the children; such notification must be made within 24 hours of the first treatment or examination.
 - b. Each parent is authorized to take all actions necessary to protect the health and welfare of the children, including but not limited to consent to emergency surgical procedures or treatment. The parent authorizing such

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emergency treatment must notify the other parent as soon as possible of the emergency and of all procedures or treatment administered to the children.

c. Mother and Father are required to administer any prescribed medications for the children.

6. School notification

a. Each parent will be designated as a person the children's school will contact in the event of an emergency.

7. Name

a. Neither Mother nor Father will change CHILD'S or THE CHILDREN'S surname or have a different name used on the children's medical, school, or other records without the written consent of the other parent.

As to the reimbursable expenses, the parties are to agree to any non-emergency expense prior to the expenses being incurred. The agreements shall be in writing utilizing the co-parenting application. The parties are to follow the guidelines as set forth in the attached FL-192.

All communication between the parties shall be brief and respectful.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #22: THE COURT FINDS THE MOST, IF NOT ALL THE REQUESTED ORDERS ARE ALREADY STANDING ORDERS OF THE COURT. THE COURT ADMONISHES BOTH PARTIES TO REFLECT ON THEIR BEHAVIORS. THE COURT NOTES THE RESPECT GUIDELINES THAT THE COURT ADOPTED AS ITS ORDERS ON AUGUST 21, 2025. THE COURT REITERATES THOSE ORDERS. LIKewise, THE ORDERS FOR THE RIGHT OF FIRST REFUSAL WERE ADOPTED ON AUGUST 21, 2025, IMPOSING A 10-HOUR REQUIREMENT OF PARENTAL UNAVAILABILITY WHICH EXCLUDES EMPLOYMENT. THE COURT REITERATES THE JOINT LEGAL CUSTODY PARAMETERS. AS TO THE REIMBURSABLE EXPENSES, THE PARTIES ARE TO AGREE TO ANY NON-EMERGENCY EXPENSE PRIOR TO THE EXPENSES BEING INCURRED. THE AGREEMENTS SHALL BE IN WRITING UTILIZING THE CO-PARENTING APPLICATION. THE PARTIES ARE TO FOLLOW THE GUIDELINES AS SET FORTH IN THE ATTACHED FL-192. ALL COMMUNICATION BETWEEN THE PARTIES SHALL BE BRIEF AND RESPECTFUL. ALL PRIOR ORDERS NOT IN

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CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

NOTICE OF RIGHTS AND RESPONSIBILITIES REGARDING CHILD SUPPORT

Childcare and Health Care Costs and Reimbursement Procedures

Your child support order may include a provision for payment of childcare or uninsured health care costs. Childcare costs may be included as part of the monthly child support payment or reimbursable as a percentage of the costs. If the childcare costs are included as part of the monthly child support payment, you must pay that amount each month until the court changes (modifies) the child support order. If you need to change your child support order because there has been a change in the cost of childcare, see page 2.

If you have a child support order that includes a provision for the reimbursement of a percentage of childcare costs or a portion of the child's or children's health care costs and those costs are not paid by insurance, the **law says**:

1. **Notice.** You must give the other parent an itemized statement of the charges that have been billed for any childcare costs or health care costs not paid by insurance. You must give this statement to the other parent within a reasonable time, but no more than 90 days after those costs were given to you.
2. **Proof of full payment.** If you have already paid all of the childcare costs or uninsured health care costs, you must (1) give the other parent proof that you paid them and (2) ask for reimbursement for the other parent's court-ordered share of those costs.
3. **Proof of partial payment.** If you have paid only your share of the childcare costs or uninsured health care costs, you must (1) give the other parent proof that you paid your share, (2) ask that the other parent pay his or her share of the costs directly to the childcare or health care provider, and (3) give the other parent the information necessary for that parent to be able to pay the bill.
4. **Payment by notified parent.** If you receive notice from a parent that a childcare or uninsured health care cost has been incurred, you must pay your share of that cost within the time the court orders; or if the court has not specified a period of time, you must make payment (1) within 30 days from the time you were given notice of the amount due, (2) according to any payment schedule set by the health care provider, (3) according to a schedule agreed to in writing by you and the other parent, or (4) according to a schedule adopted by the court.
5. **Going to court.** Sometimes parents get into disagreements about childcare and health care costs. If you and the other parent cannot resolve the situation after talking about it, you can request that the court make a decision.
- a. **Disputed requests for payment.** If you dispute a request for payment made by the other parent, you may file a request for the court to resolve the dispute, but only if you pay the requested amount before filing your request.
- b. **Nonpayment.** If you claim that the other parent has failed to pay you back for a payment, or they have failed to make a payment to the provider after proper notice, you may file a request for the court to resolve the dispute.
- c. **Paid charges.** The court will presume that if uninsured health care costs or childcare costs for employment or necessary training for job skills have been paid, those costs were reasonable. If you want to dispute paid charges, you will have to show the court that the costs were unreasonable.
- d. **Attorney's fees.** If the court decides one parent has been unreasonable, it can order that parent to pay the other parent's attorney's fees and costs.
- e. **Court forms.** Use forms [FL-300](#) and [FL-490](#) to get a court date. See form [FL-300-INFO](#) for information about completing, filing, and serving your court papers.
6. **Court-ordered insurance coverage.** If a parent provides health care insurance as ordered by the court, that insurance must be used at all times to the extent that it is available for health care costs.
- a. **Burden to prove.** The parent claiming that the coverage is inadequate to meet the child's needs has the burden of proving that to the court.
- b. **Cost of additional coverage.** If a parent purchases health care insurance in addition to that ordered by the court, that parent must pay all the costs of the additional coverage. In addition, if a parent uses alternative coverage that costs more than the coverage provided by court order, that parent must pay the difference.
7. **Preferred health providers.** If the court-ordered coverage designates a preferred health care provider, that provider must be used at all times consistent with the terms of the health insurance policy. When any parent uses a health care provider other than the preferred provider, any health care costs that would have been paid by the preferred health provider if that provider had been used must be the sole responsibility of the parent incurring those costs.
8. **Need help?** Contact the family law facilitator in your county or call your county's bar association and ask for an experienced family lawyer.

Information Sheet on Changing a Child Support Order

General Info

The court has made a child support order in your case. This order will remain the same unless one of the parents requests that the support be changed (modified). An order for child support can be modified by filing a request to change child support and serving the other parent. If both parents agree on a new child support amount, they can complete, sign, and file with the court a *Stipulation to Establish or Modify Child Support and Order* (form [FL-350](#)). (**Note:** If the local child support agency is involved in your case, it must be served with any request to change child support and approve any agreement.)

Online Self-Help Guide

For more information about how child support works, visit: <https://selfhelp.courts.ca.gov/child-support>.

When a Child Support Order May Be Changed

The court considers several things when ordering the payment of child support.

- First, the number of children is considered, along with the percentage of time each parent has physical custody of the children.
- Next, the net disposable incomes of both parents are determined (which is how much money is left each month after taxes and certain other items like health insurance, union dues, or other child support ordered and paid are subtracted from a parent's paycheck). The court can also look at a parent's earning ability.
- The court considers both parents' tax filing status and may consider hardships, such as the cost of raising the parent's child from another relationship who lives with the parent.

A parent can request to change an existing order for child support when circumstances change significantly. For example if the net disposable income of one of the parents changes, parenting time changes, or a new child is born.

Examples

- You have been ordered to pay \$500 per month in child support. You lose your job. You will continue to owe \$500 per month, plus 10 percent interest on any unpaid support, unless you file a motion to modify your child support to a lower amount and the court orders a reduction.
- You are currently receiving \$300 per month in child support from the other parent, whose net income has just increased substantially. You will continue to receive \$300 per month unless you file a motion to modify your child support to a higher amount and the court orders an increase.
- You are paying child support based on having physical custody of your children 30 percent of the time. After several months it turns out that you actually have physical custody of the children 50 percent of the time. You may file a motion to modify child support to a lower amount.

How to Change a Child Support Order

To change a child support order, you must file papers with the court. *Remember:* You must follow the order you have now.

What forms do I need?

If you are asking to change a child support order, you must fill out one of these forms:

- Form [FL-300](#), *Request for Order* **or**
- Form [FL-390](#), *Notice of Motion and Motion for Simplified Modification of Order for Child, Spousal, or Family Support*

You must also fill out one of these forms, and attach proof of income for the past two months (like your paycheck stubs):

- Form [FL-150](#), *Income and Expense Declaration* **or**
- Form [FL-155](#), *Financial Statement (Simplified)*

What if I am not sure which forms to fill out?

Contact the family law facilitator in your county. You can find them here: www.courts.ca.gov/selfhelp-facilitators.htm.

After you fill out the forms, file them with the court clerk and ask for a hearing date. Write the hearing date on the form.

The clerk may ask you to pay a filing fee. If you cannot afford the fee, fill out these forms, too:

- Form [FW-001](#), *Request to Waive Court Fees* **and**
- Form [FW-003](#), *Order on Court Fee Waiver (Superior Court)*

You must serve the other parent. If the local child support agency is involved, serve it too.

- This means someone 18 or over—not you—must deliver copies of your filed court forms to the other parent, at least **16 court days** before the hearing. Add **5 calendar days** if delivered by mail within California (see Code of Civil Procedure section 1005 for other situations).
- **Court days** are weekdays when the court is open for business (Monday through Friday except court holidays). **Calendar days** include all days of the month, including weekends and holidays. To find court holidays, go to: www.courts.ca.gov/holidays.htm.

Blank copies of both of these forms must also be served:

- Form [FL-320](#), *Responsive Declaration to Request for Order*
- Form [FL-150](#), *Income and Expense Declaration*

Then the server fills out and signs a *Proof of Service*. Take this form, plus one copy, to the clerk and file it at least one week before your hearing.

Go to your hearing and ask the judge to change the support. Bring your tax returns from the last two years and your proof of income for the past two months (like your paycheck stubs). The judge will look at your information, listen to both parents, and make an order. After the hearing, fill out:

- Form [FL-340](#), *Findings and Order After Hearing* **and**
- Form [FL-342](#), *Child Support Information and Order Attachment*

Need help?

Contact the family law facilitator in your county or call your county's bar association and ask for an experienced family lawyer.

Information About Child Support for Incarcerated or Confined Parents

1. Child support. As of September 27, 2022, child support automatically stops if the parent who has to pay is confined against their will for more than 90 days in a row in jail, prison, juvenile detention, a mental health facility, or other institution.

Exception. Child support does not automatically stop if the parent who has to pay has money available to pay child support.

2. Past confinement. Child support also automatically stops during past confinement if it was ordered from October 8, 2015, through December 31, 2019, or January 1, 2021, through September 26, 2022, and the parent who has to pay was confined for more than 90 days in a row during the same time frame.

Exceptions for past confinement. Child support does not automatically stop if the parent who has to pay was in jail or prison for failing to pay child support or for domestic violence against the other parent or the child, or if they had money available to pay support.

3. Timing. The date child support automatically restarts will depend on the parent's release date. If you need to change your child support order, see page 2.

- a. If released before January 1, 2024,** child support automatically restarts the first day of the first full month after the parent is released.
- b. If released after January 1, 2024,** child support will automatically restart the first day of the 10th month after the parent is released.

Employment before the 10-month period ends: If the parent who has to pay support starts working before the date child support is set to automatically restart, the person who is owed support or the local child support agency can request the court restart the child support order early. The court may order a different amount of child support if appropriate.

4. More info. For more information about child support and incarcerated parents, see Family Code section 4007.5 or go to <https://selfhelp.courts.ca.gov/child-support/incarcerated-parent>. You can also contact the family law facilitator in your county and can find them here: www.courts.ca.gov/selfhelp-facilitators.htm.

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23. KEVIN WENTWORTH V. CHEYENNE FULLER

25FL1247

Respondent filed a Request for Order (RFO) on July 24, 2026, seeking child custody and parenting plan orders as well as a variety of other orders. There is no Proof of Service showing Petitioner was properly served.

The court drops the matter from calendar due to the lack of proper service.

TENTATIVE RULING #23: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.